

Court No. - 34

Case :- WRIT - C No. - 6869 of 2019

Petitioner :- M/S. Maa Kaila Devi Cold Storage

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Rahul Mishra, learned counsel for petitioner, Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for respondents and perused the material available on record.
2. Admittedly, petitioner has committed default in payment of dues which was allowed to be paid in instalments. It appears that petitioner again committed default in payment of instalments. Therefore, impugned demand notice under Section 3 of U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 (hereinafter referred to as "Act, 1958") has been issued.
3. Counsel for petitioner submitted that he has already deposited the entire amount. If that be so, it is always open to petitioner to bring this fact to the notice of authorities concerned and if there is any other dispute with regard to quantum of electricity dues, petitioner has alternative statutory remedy under Clause 6.5 of U.P. Electricity Supply Code, 2005.
4. In view thereof, writ petition is dismissed on the ground of alternative remedy.

Order Date :- 1.3.2019

Siddhant Sahu